

IT Act 2000

Information Technology Act, 2000

Information Technology (IT) Act, 2000

User Query :

My parents received a phone call in which the caller sounded exactly like me and claimed that I had been detained after an accident and urgently needed money. The caller also sent them a short video that appeared to show me asking for help. My parents transferred ₹75,000 before contacting me and discovering that the voice and video had been artificially generated. What legal provisions may apply?

Job Id. : qwen3-30b/Scenario 14/Information Technology (IT) Act, 2000

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AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 66D — Punishment for cheating by personation by using computer resource

The caller/video impersonated the victim through electronic means and induced a money transfer.

Section 79A — Central Government to notify Examiner of Electronic Evidence

Potentially relevant if expert examination is needed to show the voice/video was synthetically generated.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 **Section 66D** is the clearest IT Act offence. Do not add a separate identity-theft provision solely from use of a cloned voice/video unless the required protected identifier is actually used.

✓ STRENGTHS & RIGHTS

1 The impersonation and resulting transfer are explicit.

✗ RISKS & OBLIGATIONS

1 Avoid claiming that the IT Act contains an AI/deepfake-specific offence section where the Act does not.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. Preserve call records, the original video file, message metadata and transfer records.

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